

assessment under Art. 123(3) EPC, the board considered that the feature "by heat" in relation to a drying device was connected to the printing press but not to the PQCA; in view of its new holistic interpretation, the deletion of the feature extended the scope of protection of the patent.

In T 2174/16 the board recalled that the principle of legal certainty for third parties was of utmost importance when determining the scope of protection conferred by the patent as granted.

2.4. Deletions and replacements

2.4.1 Deletion of a limiting feature in a claim – inescapable trap

A granted claim cannot be amended by deleting limiting subject-matter from the claims, because such amendment would extend the protection conferred, which is prohibited by Art. 123(3) EPC; if the limiting subject-matter had been added in contravention of Art. 123(2) EPC, the applicant is caught in an "inescapable trap", see G 1/93 and chapter II.E.3.1.

In T 1407/05 the board considered that claim feature A described essential technical characteristics of the claims as granted. Feature A was removed from the wording of the claims in all pending requests; all other claim features remained essentially the same. The board held that the removal of a positive technical feature from an independent claim *prima facie* resulted in a broadening of the scope of protection afforded by it and therefore contravened Art. 123(3) EPC.

In T 1983/14 the applicant had added a limiting feature to the claim during examination. The opposition division found that, as a consequence of adding this feature, the patent proprietor had lost its right to priority and its own use of the invention during the priority period had been prejudicial to novelty. The board agreed and held in addition that the problem of the added feature could not have been overcome by amendment. This was because Art. 123(3) EPC prevented the removal, after grant, of a problematic, limiting feature.

In T 666/97 the product claim of the auxiliary request no longer included a process feature which was included in the product claim as granted. In the board's view, it followed from the fact that the subject-matter for which protection was claimed in the auxiliary request was a product that it could only be characterised by features manifest in/on the product itself. That meant that manipulations taking place during product manufacture but not resulting in product features were of no relevance to the definition of the claimed product and hence to the scope of protection of the claim. That was an unavoidable implication of the established case law of the boards of appeal, under which the subject-matter of a **product-by-process claim** derives its novelty not from new procedural steps but purely from structural features (see T 205/83, OJ 1985, 363). Thus, to resolve the issue of compliance with the requirements of Art. 123(3) EPC 1973, what had to be decided was whether the omitted product-by-process feature was technically significant for the definition of the claimed product, i.e. whether it was a product feature. The board found

that in the present case the omitted feature was not a product feature. Thus the claim had not been extended within the meaning of Art. 123(3) EPC 1973.

In T 1191/15 a feature present in the claims as granted had been deleted from the new main request so that this request now encompassed embodiments that were not encompassed by the claims as granted (namely embodiments wherein the control means of the claimed dialysis apparatus was programmed in a certain way). This was contrary to Art. 123(3) EPC.

2.4.2 Deletion of feature from description where claim remains unchanged

In T 142/05 the board found that, even where the wording of the granted claims was unamended and clear, the mere deletion from the description of an important desired property of the patented subject-matter led to an extension of the scope of protection which contravened Art. 123(3) EPC 1973 (this is different in the case of an optional, hence not important feature, see T 71/10). The board explained that, although the claims were the most important element in determining the extent of protection, **the wording of the claims should not be seen as the sole relevant factor**; instead, the description and drawings were to be used in interpreting the claims. From this, it followed that even if the wording of a claim was clear and unambiguous, i.e. where the scope of its literal meaning was clear, reference was still to be made to the description and claims. This could lead to a different interpretation of the claim, diverging from that obtained by considering only its literal meaning. Amendments to the description and drawings could modify the content of the claims and thereby extend the scope of protection according to Art. 69(1) EPC 1973, even where the wording of the claims was clear and remained unamended. In the board's view, the deletion in the case at issue had the effect of generalising the teaching of the patent. Art. 123(3) EPC 1973 had therefore been contravened.

This approach was confirmed in T 1360/13, which related to the deletion of drawings (see below chapter II.E.2.4.5).

2.4.3 Deletion of examples for a general feature in a claim

The board in T 1052/01 took the view that deleting examples given in claim 1 as granted (here "valve, restrictor, etc.") for a general feature (here "hydraulic functional unit") did not extend the protection conferred, as these examples were embraced by the general feature which determined the extent of the protection conferred.

2.4.4 Deletion of disclaimer

In T 532/08 the board held that, in the case at issue, the disclaimer could only be omitted without extending the scope of protection if it was beyond doubt that the components (of the disclaimed suspension) identified by trade names did not comprise any of the claimed tensides. However, it could not be unequivocally established what was excluded by a disclaimer referring to trade names, as a product designated by a trade name may change over time while keeping its name.

In T.136/12 the amended disclaimer was narrower than the disclaimer in claim 1 of the patent as granted, whereas the positive features of that claim had remained the same. The board found that the amended claim extended the scope of protection and observed in this context that the case law of the boards had consistently taken disclaimers into account when examining whether a claim amended by introducing, modifying or deleting a disclaimer fulfilled the requirements of Art. 123(3) EPC.

2.4.5 Deletion or replacement of drawings

In T.2259/09, whilst the patent as granted comprised a set of Figures, in the amended patent according to the main request all drawings were deleted to comply with the requirements of Art. 123(2) EPC, and the description was correspondingly adapted. Concerning the examination of Art. 123(3) EPC, with the deletion of the drawings from the patent specification, technical information was undoubtedly lost. Whilst this loss of information might also introduce some uncertainties about certain details of the preferred embodiments depicted in the drawings, it could not be concluded, as in the impugned decision, that it automatically broadened the protection conferred. In the case at issue, the claims were not limited to any of the details, dimensions or features specifically depicted in the (deleted) drawings. Moreover, under Art. 69(1) EPC, reference to the drawings of a patent specification may be helpful or even necessary if an ambiguity exists in the granted claim. However, in the case at issue, the impugned decision did not identify any such ambiguity; nor could the board see any. Therefore, the deletion of the drawings did not extend the scope of the protection conferred by the main request.

In T.236/12 the drawings published in the patent specification had been replaced by those originally filed. Although the published drawings had disclosed technical information not derivable from those originals, their replacement did not broaden the scope of the patent. The technical features of the claims were explained in sufficient detail in the description, as read together with the originals, so the skilled person could still get a clear idea of the protected subject-matter and how it should look.

In T.1360/13 the board considered that, in view of Art. 69(1) EPC, after grant, any information in the description and/or drawings of a patent directly related to a feature of a claim and **potentially restricting its interpretation** cannot be removed from the patent without infringing Art. 123(3) EPC. Referring to G.2/88 (OJ 1990, 93) and Art. 69 EPC, the board held that even if, after the claims have been read taken alone, no clarification seemed necessary, it could not be excluded that the description and drawings were necessary to interpret the claims, i.e. to determine the extent of the protection conferred. As a rule, the vocabulary used in a patent was unitary and dependent on the technical field of the invention and on the writer's own preferences. The description and drawings generally included explicit or implicit definitions of terms used in the claims, e.g. explanations as to the functions of the claimed features, the aims to be achieved by the invention, etc. Concentrating exclusively on the wording of the claim would mean that from the point of view of the extent of protection, the whole description and the drawings of the patent could be deleted, in which case, the intentions of the inventor would be completely ignored. In the present case, the deletion of the drawings and any references to them in the description led not only to a generalisation of the teaching of the patent but also to a

more general interpretation of the claim. The board distinguished its case from T. 2259/09 and T. 236/12.

2.4.6 Deletion of feature in a claim mentioned "in particular"

In T. 260/10 the feature "having at least one optical display unit and in particular at least one operating unit ..." in claim 1 as granted had been replaced and the words "and in particular at least one operating unit" thereby deleted. The board found that it generally **depended on the specific context** whether a feature following the expression "in particular" had to be regarded as optional. As a rule, an optional feature in the main claim was one which was not essential to the claimed teaching but instead served as an example illustrating other features. The wording used in claim 1 as granted meant that the claimed domestic appliance included not only an optical display unit but also an operating unit, the expression "in particular" having to be construed in the sense of "above all" or "especially". The operating unit was specified not as an example of a possible component, but rather as an essential part of the domestic appliance. In this case, "in particular" gave special emphasis to the operating unit as part of the appliance. The scope of protection was limited by this non-optional feature and its deletion therefore infringed Art. 123(3) EPC (see also T. 916/08).

2.4.7 Deletion of a "preferred" feature in a claim

In T. 795/95 the board did not share the appellant's view that deleting the feature "preferably polyvinyl or polyethylene" from the preamble of granted Claim 1 extended the protection conferred. The formulation "preferably polyvinyl or polyethylene" had no bearing on the scope of protection, which was determined by the more general term "plastic" and not the specific preferred substances polyvinyl or polyethylene. Deleting a "preferred" feature did not extend the scope of protection if such feature was encompassed by an earlier and general one (in this case, "plastic") which determined the protection conferred.

2.4.8 Replacement of a restrictive term by a less restrictive term

In T. 371/88 (OJ 1992, 157) the board held that Art. 123(3) EPC 1973 was not contravened if a restrictive term in a granted claim which in its strict literal sense did not embrace an embodiment set out in the description was replaced by a less restrictive term clearly embracing also this embodiment, provided two conditions were fulfilled: The restrictive term should not be so clear in its technical meaning in the given context that it could be used to determine the extent of protection without interpretation by reference to the description and drawings. Moreover, it had to be quite clear from the description and drawings and also from the examination procedure up to grant that the further embodiment belonged to the invention and that it was never intended to be excluded from the protection conferred by the patent (see also T. 673/89 confirming T. 371/88; T. 738/95 distinguishing its case from T. 371/88; T. 750/02, which held that the first condition set out in T. 371/88 was not fulfilled; T. 749/03, which held that both conditions were met and which is summarised in chapter II.E.2.4.9 below).

In T 824/08 the board observed that the rationale of T 371/88 could not be applied in the case at issue since the limiting feature was clear in itself and did not pose any problems when determining the extent of protection conferred by the claim.

2.4.9 Replacement of an inaccurate technical statement in a claim

In T 190/99 the board stated with reference to T 108/91 (OJ 1994, 228) and T 214/91 that the amendment of a granted claim to replace an inaccurate technical statement, which was evidently inconsistent with the totality of the disclosure of the patent, with an accurate statement of the technical features did not infringe Art. 123(3) EPC 1973. The board added that the skilled person, when considering a claim, should rule out interpretations which were illogical or did not make technical sense.

In T 749/03 the respondent (patent proprietor) argued that a situation similar to the one in T 190/99 arose as claim 5 as originally filed would, if taken alone, not make technical sense, and even the simple addition of its features to the features of claim 1 would result in an inadequately defined apparatus. However, by taking into account the whole disclosure of the patent the skilled person might arrive at a technically sensible interpretation of the claim. The board based its reasoning on the approach taken in decision T 371/88 (OJ 1992, 157, summarised in chapter II.E.2.4.8 above), which concerned the admissibility of amending a granted claim to replace a restrictive term with a less restrictive term and defined two conditions: (a) the restrictive term in the granted claim was not so clear in its technical meaning in the given context that it could be used to determine the extent of protection without interpretation by reference to the description and the drawings of the patent; (b) it was quite clear from the description and the drawings of the patent and also from the examination procedure up to grant that the further embodiment belonged to the invention and that it had never been intended to exclude it from the protection conferred by the patent. In the case at hand (T 749/03), having regard to claim 1 alone, the features relating to the second (transmission) grating were perfectly clear in their technical meaning. However, in combination with claim 5 they would only make sense if reference were made to the description and drawings. Therefore requirement (a) was met. Further, there could be no doubt that the applicant had not waived that embodiment. Hence requirement (b) was also met.

In T 1896/11 the appellant had replaced the parameter to be monitored in claim 5 of the patent as granted by a different parameter. According to the appellant, this was done because claim 5 of the granted patent contained an inaccurate technical statement and, since from the description it was clear what was obviously intended, claim 5 could be corrected to reflect this intention (with reference T 108/91), without violating Art. 123(3) EPC. The board disagreed and held that the skilled person would understand claim 5 of the granted patent as it stood and would not have any reason to suspect that it contained an inaccurate technical statement. Moreover, in accordance with G 1/93 (OJ 1994, 541), it was not allowable to replace a technical feature of a patent claim with another technical feature which caused the claim to extend to subject-matter which was not encompassed by the granted claim. As pointed out in T 195/09, in this respect decision T 108/91 had been clearly overruled by G 1/93.